| ATTORNEY OR PARTY WITHOUT ATTORNEY | STATE BAR NUMBER: | FOR COURT USE ONLY |
|---|---|---|
| NAME: Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III | | |
| FIRM NAME: | | |
| STREET ADDRESS: 12345 Southwest Grandview Boulevard Northeast, Building 7, Apartment 4321-B | | |
| CITY: Unincorporated Township of Long Hollow Crossing | STATE: AZ ZIP CODE: 01234-9999 | |
| TELEPHONE NO.: 555-0142 ext. 44821 | FAX NO.: | |
| EMAIL ADDRESS: alexandrina.montgomery.vandenberg.oyelaran.fitzwilliam@department-of-example.example.gov | | |
| ATTORNEY FOR *(name):* | | |
| **SUPERIOR COURT OF CALIFORNIA, COUNTY OF** Saint Bartholomew and the Northern Reaches County | | |
| STREET ADDRESS: | | |
| MAILING ADDRESS: | | |
| CITY AND ZIP CODE: | | |
| PEOPLE OF THE STATE OF CALIFORNIA<br>v.<br>DEFENDANT: Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III | | CASE NUMBER:<br>0123-45-2026-CR-900123.00-AB-CDE/2201 |
| **ORDER AFTER PETITION/APPLICATION UNDER HEALTH AND SAFETY CODE SECTION 11361.8—ADULT CRIMES**<br>☐ RESENTENCING OR DISMISSAL (Health & Saf. Code, § 11361.8(b))<br>☐ **REDESIGNATION OR DISMISSAL/SEALING (Health & Saf. Code, § 11361.8(f))** | | FOR COURT USE ONLY<br>DATE:<br>TIME:<br>DEPARTMENT: |

From the petition/application filed in this matter, the records of the court, and any other evidence presented in this matter, the court orders as follows:

1. ☐ **RESENTENCING GRANTED.**
   The petitioner is eligible for the requested relief. The petition is **GRANTED**. The court hereby recalls the sentence imposed on the designated crime and enters the following additional orders:

   a. ☐ The following crime is resentenced as ☐ misdemeanor ☐ infraction
      *(specify crime; more than one may be listed):*

   b. ☐ The following sentence is imposed for the commission of the crime:

   c. ☐ The petitioner is given credit for time served of *(number of days):*

   d. ☐ Petitioner is required to complete a period of supervision of: ☐ months ☐ days
      ☐ parole ☐ postrelease community supervision ☐ mandatory supervision (Pen. Code, section 1170(h))
      ☐ formal probation ☐ informal probation

   e. ☐ The court releases the petitioner from any form of postconviction supervision.

   f. ☐ The court **DISMISSES** the following crime for the reason that the conviction is legally invalid:

   g. ☐ Other:

2. ☐ **REDESIGNATION GRANTED.**
   The applicant is eligible for the requested relief. The application is **GRANTED.** The court hereby recalls the sentence imposed on the designated crime and enters the following additional orders:

   a. ☐ The following crime is redesignated as ☐ misdemeanor ☐ infraction
      *(specify crime; more than one may be listed):*

   b. ☐ The court **DISMISSES** the following crime for the reason that the conviction is legally invalid
      *(specify crime; more than one may be listed):*

   c. ☐ Other:



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Judicial Council of California
CR-403 [Rev. January 1, 2024]

| PEOPLE OF THE STATE OF CALIFORNIA v. DEFENDANT: Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III | CASE NUMBER: 0123-45-2026-CR-900123.00-AB-CDE/2201 |
|---|---|

3. ☐ **RESENTENCING/REDESIGNATION DENIED.**
The petitioner/applicant is ineligible for the requested relief. The request for resentencing, redesignation, dismissal, or sealing is **DENIED** as to crime: for the following reasons:

   a. ☐ The petitioner/applicant was convicted of an offense that is not eligible for the requested relief.

   b. ☐ The petitioner's/applicant's age at the time the crime was committed makes petitioner/applicant ineligible for the requested relief.

   c. ☐ The nature of the marijuana substance constituting the basis of the crime makes petitioner/applicant ineligible for the requested relief.

   d. ☐ The quantity of the marijuana substance constituting the basis of the crime makes petitioner/applicant ineligible for the requested relief.

   e. ☐ Although petitioner is eligible for relief, for reasons stated on the record, the court finds that resentencing of petitioner would pose an unreasonable risk of danger to public safety.

   f. ☐ Other:

4. **MISDEMEANOR/INFRACTION FOR ALL PURPOSES**
Any misdemeanor resentenced as an infraction as a result of this order will thereafter be an infraction for all purposes. Any felony conviction resentenced as a result of this order as a misdemeanor or infraction will be a misdemeanor or infraction for all purposes.

5. ☐ **REGISTRATION.** The petitioner/applicant is relieved from the requirement to register as a narcotics offender under Health and Safety Code section 11590.

6. ☐ **SEALING OF CONVICTION.** The court's record of conviction is ordered sealed. No access to the information shall be permitted without court order.

**IT IS SO ORDERED.**

Date:

JUDICIAL OFFICER